

24STCV18216 24STCV18216

County: los-angeles

Division: Civil Law and Motion

Department: 732

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Case Number: 24STCV18216 Hearing Date: July 27, 2026 Dept: 732

Wendy Carolina Martinez Hernandez, et al. v. Parthenia

Twins Apts. LP, et al.

Monday, July 27, 2026

CASE NUMBER: 24STCV18216

UNOPPOSED

Petitioner Wendy

Carolina Martinez Hernandez's Petitions to Approve Compromise of Minor

Claimants Diana Anahi Bengtson Martinez and Dylan Anael Bengtson Martinez.

Facts:

This is a habitability action. The Complaint alleges as follows. Various Plaintiffs resided on premises owned and managed by Defendants Parthenia Twins Apts. LP and Positive Investments, Inc. ("Defendants"). (Complaint ¶¶ 1–6.) Defendants have failed to maintain the property in habitable condition, leading to cockroach infestations, water leaks, electrical defects, and dilapidation. (Complaint ¶¶ 12a–12c.) Defendants failed to remedy these defects despite complaints by Plaintiffs and other tenants. (Complaint ¶¶ 14–15.)

Procedural History: Plaintiffs filed the Complaint on July

23, 2024, alleging eight causes of action:

1.

Breach of Warranty of Habitability

2.

Tortious Breach of Warranty of Habitability

3.

Negligence

4.

Intentional Infliction of Emotional Distress

5.

Private Nuisance

6.

Civ. Code § 1942.4

7.

LAMC § 45.33

8.

Bus. & Prof. Code § 17200

Defendants filed a

Cross-Complaint on September 19, 2025, alleging five causes of action against

Pollak Family LLC:

1.

Equitable Indemnity

2.

Contribution

3.

Implied Indemnity

4.

Apportionment of Fault

5.

Declaratory Relief

Runin Reb, Ltd. was added as a

Doe defendant on the cross-complaint on October 16, 2025.

Runin Reb Ltd. filed a

cross-complaint on November 21, 2025, alleging three causes of action against

Defendants and Cross-Defendants:

1.

Equitable Indemnity

2.

Comparative Contribution

3.

Declaratory Relief

A notice of settlement was

filed on June 17, 2026.

Plaintiff Martinez Hernandez

filed the present petitions to approve minor's compromise on July 2, 2026.

Analysis:

I.

PETITION

FOR MINOR'S COMPROMISE

Minors or people without legal

capacity to make decisions must appear in court by a guardian, conservator of

the estate, or guardian ad litem. (Code Civ. Proc. § 372, subd. (a)(1).) Such

person appearing in court on behalf of the minor or person without capacity has

the power to compromise the claims of the represented person, "with the

approval of the court." (Ibid.) The requirement of court approval exists

"to protect the best interests of the minor." (Pearson v. Superior Court

(2012) 202 Cal.App.4th 1333, 1338.)

“A petition for court approval of a compromise of, or a covenant not to sue or enforce judgment on, a minor's disputed claim; a compromise or settlement of a pending action or proceeding to which a minor or person with a disability is a party; or the disposition of the proceeds of a judgment for a minor or person with a disability under Probate Code sections 3500 and 3600-3613 or Code of Civil Procedure section 372 must be verified by the petitioner and must contain a full disclosure of all information that has any bearing on the reasonableness of the compromise, covenant, settlement, or disposition.” (CRC Rule 7.950.)

If an attorney assisted in the preparation of the petition, the petition must disclose: “(1) The name, state bar number, law firm, if any, and business address of the attorney; (2) Whether the attorney became involved with the petition, directly or indirectly, at the instance of any party against whom the claim is asserted or of any party's insurance carrier; (3) Whether the attorney represents or is employed by any other party or any insurance carrier involved in the matter; (4) Whether the attorney has received any attorney's fees or other compensation for services provided in connection with the claim giving rise to the petition or with the preparation of the petition, and, if so, the amounts and the identity of the person who paid the fees or other compensation; (5) If the attorney has not received any attorney's fees or other compensation for services provided in connection with the claim giving rise to the petition or with the preparation of the petition, whether the attorney expects to receive any fees or other compensation for these services, and, if so, the amounts and the identity of the person who is expected to pay the fees or other compensation; and (6) The terms of any agreement between the petitioner and the attorney.” (CRC Rule 7.951.

The petitioner and claimant must attend the hearing on the petition unless the court for good cause orders otherwise. (CRC Rule 7.952, subd. (a).)

In all cases under Code of Civil Procedure section 372 or Probate Code sections 3600-3601, unless the court has approved the fee agreement in advance, the court must use a reasonable fee standard when approving and allowing the amount of attorney's fees payable from money or property paid or to be paid for the benefit of a minor or a person with a

disability.

The court must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney's fee would be affected by later events.

(CRC Rule 7.955, subd.

(a)(1)–(2).)

Petitioner Wendy Carolina

Martinez Hernandez brings the present petitions to approve compromises for minor claimants Diana Anahi Bengtson Martinez (“Claimant Diana”) and Dylan Anael Bengtson Martinez (“Claimant Dylan”).

The proposed settlement terms are as follows. Defendants Parthenia Twins Apts. LP and Positive Investments, Inc. (“Defendants”) agree to pay a total settlement to Plaintiffs of \$695,000.00. (Petition at p. 3.) From this amount Claimant Dylan is to receive \$49,500.00, while Claimant Diana is to receive \$43,500.00. (Dylan Petition at p. 3; Diana Petition at p. 3.) From these amounts, Claimant Dylan is to pay \$17,325.00 in attorney fees, and Claimant Diana is to pay \$15,225.00, each representing 35% of the gross recovery, plus \$861.99 and \$783.58 in costs, respectively. (Petitions at p. 5.)

Petitioner justifies the allocation of settlement funds on the grounds that settlement was initially intended to be allocated equally among the ten Plaintiffs in this action with each receiving a gross amount of \$69,500.00, but Petitioner thought it best to allocate a portion of Claimants' recovery to herself in order to provide immediate resources for their care before they turn eighteen. (Mitcheltree Decl. ¶¶ 20–25.) A larger amount was taken from Claimant Diana than Claimant Dylan, evidently to account for Claimant Diana's relative youth, and thus the longer time in which she shall be in Petitioner's care. (Mitcheltree Decl. ¶¶ 24–25; Exh. B.)

Deducting fees and costs from

each minor claimant's award yields a net settlement amount for Claimant Dylan of \$31,283.34 and for Claimant Diana of \$27,491.42, which are to be placed into a single-premium deferred annuity, subject to withdrawal upon court authorization. (Petitions at p. 8.)

The petitions are accompanied by the declaration of Plaintiffs' counsel, Tara. L. Mitcheltree, who attests to the circumstances of the settlement, its allocation, and to the attorney work performed on the present action. She estimates that she expended 100 hours of attorney work on this litigation. (Mitcheltree Decl. ¶ 19.) The fee recovery is based on a contingency agreement, whereby the Plaintiffs agreed to pay 40% of any adult's recovery, and 35% of any minor's recovery. (Mitcheltree Decl. Exh. E.) Thus Plaintiffs' counsel shall obtain a total of \$266,400 in attorney fees, yielding a rough lodestar in the same amount for 100 hours worked at \$2,664.00 per hour.

Based on the declaration of Plaintiffs' counsel and the factors adduced in CRC Rule 7.955, subd. (b)(1)–(14), it is appropriate to reduce the amount of Claimants' settlement recovery allocated to attorney fees from 35% to 25%. This yields a reduction in the fees apportioned from Claimant Dylan from \$17,325.00 to \$12,375.00, and those for Claimant Diana from \$15,225.00 to \$10,875.00. The reduction in the funds apportioned to attorney fees increases the settlement balances to be paid to claimants from \$31,283.34 to \$36,233.34 for Claimant Dylan, and from \$27,491.42 to \$31,841.42 for Claimant Diana.

The petitions are GRANTED upon the above terms.

Superior Court of California

County of Los Angeles

Department 732

WENDY CAROLINA MARTINEZ HERNANDEZ,
et al.,

Plaintiff,

v.

PARTHENIA TWINS APARTMENTS, LP,
et al.,

Defendants.

Case No.:
24STCV18216

Hearing Date: July 27, 2026

[TENTATIVE] RULING RE:

Petitioner Wendy Carolina Martinez Hernandez's Petitions to
Approve Compromise of Minor Claimants Diana Anahi Bengtson Martinez and Dylan
Anael Bengtson Martinez.

Petitioner Wendy Carolina Martinez
Hernandez's Petitions to Approve Compromise of Minor Claimants Diana Anahi
Bengtson Martinez and Dylan Anael Bengtson Martinez are GRANTED,
subject to the alteration that the amount of attorney fees deducted from the
gross settlement amounts for each minor claimant shall be 25%, rather than 35%.

Thus
the attorney fees deducted from Claimant
Dylan Anael Bengtson Martinez's recovery are reduced from \$17,325.00 to
\$12,375.00, and the balance of proceeds for that claimant increases from
\$31,283.34 to \$36,233.34; and the fees deducted from Claimant Diana Anahi
Bengtson Martinez are reduced from \$15,225.00 to \$10,875.00, and the balance of
proceeds for that claimant is increased from \$27,491.42 to \$31,841.42.

Petitioner
to provide notice.

Dated: July 27, 2026

Hon.

Richard S. Kemalyan

Judge
of the Superior Court